

Form 13

13.

O. 6, r. 7(3),
r. 8(2), r. 9(2),
r. 10(2)

DEFENCE / DEFENCE AND COUNTERCLAIM
/ DEFENCE TO COUNTERCLAIM /
FURTHER PLEADINGS*
(Title as in action)

General Points to note when drafting the pleading:

1. Any matter, for example, performance, release, any relevant statute of limitation, fraud or any fact showing illegality, must be stated specifically –
 - (a) Which is alleged to make any aspect of the opposing party's pleading not maintainable;
 - (b) Which, if not specifically stated, might take the opposing party by surprise; or
 - (c) Which raises issues of fact not arising out of the opposing party's pleading.
2. The following matters must be pleaded –
 - (a) Material facts;
 - (b) Particulars of any misrepresentation, fraud, breach of trust, wilful deceit or undue influence; and
 - (c) Particulars of facts where there is allegation as to the condition of the mind of any person, whether any disorder or disability of mind, or any malice, fraudulent intention or other condition of mind except knowledge.
3. The following should not be pleaded –
 - (a) Evidence by which material facts are to be proved;
 - (b) Points of law; and
 - (c) Legal arguments and submissions.

(a) Defence / Defence and Counterclaim*

Defence

1. [Reproduce each paragraph of the statement of claim, put the paragraph number in **bold** font and enclose each paragraph within a box as follows:

SOC (1): [Reproduce paragraph 1 of the statement of claim.]
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Respond to each paragraph of the statement of claim and designate each paragraph number as "DEF (insert paragraph number)" in **bold** font as

follows. The Defendant may choose to group paragraphs together to respond to as a group:

DEF (1): [Set out defence.]

SOC (2): [Reproduce paragraph 2 of the statement of claim.]
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DEF (2): [Set out defence.]

Note: Every pleading must incorporate all previous pleadings.]

2. [State whether it is contended that the Court has no jurisdiction over the case.]
3. [State whether it is contended that the Court should not exercise jurisdiction over the case.]
4. [State whether the proceedings should be stayed or struck out or that the Court should grant some other relief.]
5. [State whether the claim is admitted and whether the amount of the claim will be paid and/or the non-monetary remedies sought in the statement of claim will be complied with.]
6. [State whether the claim is admitted but an alternative remedy to that requested in the statement of claim is being offered.]
7. [Any denial(s) and/or non-admission(s) as well as the essential facts relied upon must be succinctly and precisely explained.]

Counterclaim**

1. [State the jurisdictional basis upon which the counterclaim is founded and, if the basis is statutory, make reference to the relevant source legislation or its provision(s).]
2. [Provide a succinct and precise account of the facts justifying the counterclaim in numbered paragraphs.]
3. [State the relief or remedy, including interest and costs, sought in numbered paragraphs.]
4. [State whether the interest claimed is contractual, the rate of interest and the period claimed.]
5. [State whether the costs claimed are contractual and the amount of costs claimed.]
6. [If this is an action for personal injuries, enclose a medical report and a statement of the special damages claimed. A claim for provisional damages must be pleaded.]
7. [Comply with the General Points.]

(b) Reply / Defence to Counterclaim / Reply and Defence to Counterclaim*

Reply^

1. In accordance with Order 6 rule 10 of the Rules of Court 2021, this Reply is filed pursuant to permission granted by the Court on [date].
2. [Additional Points to note when drafting the Reply:

- (a) The Reply should state at the outset the specific paragraphs in the Defence for which approval of the Court has been given for the Reply and respond only to those paragraphs.
 - (b) If applicable, the Reply may state in the opening paragraphs that in relation to the paragraphs in the Defence for which no response is provided, the paragraphs are denied or not admitted.
 - (c) The Reply should reproduce all the paragraphs in the prior pleadings, i.e. the Statement of Claim and Defence (and Counterclaim), as may be applicable.]
3. [Reproduce each paragraph of the previous pleadings, put the paragraph number in **bold** font and enclose the paragraphs within a box as follows:

SOC (1): [Reproduce paragraph 1 of the statement of claim.]

DEF (1): [Reproduce paragraph 1 of the defence.]

Respond only to the specific paragraph(s) of the defence for which approval has been given and designate each paragraph number as “REP (insert paragraph number)” in **bold** font as follows. The Claimant may choose to group paragraphs in the Defence together to respond to as a group:

REP (1): [Set out reply.]

SOC (2): [Reproduce paragraph 2 of the statement of claim.]

DEF (2): [Reproduce paragraph 2 of the defence.]

REP (2): [Set out reply.]

Note: Every pleading must incorporate all previous pleadings.]

4. [Any denial(s) and/or non-admission(s) as well as the essential facts relied upon must be succinctly and precisely explained.]
5. [Comply with the General Points.]

Defence to Counterclaim**

1. [Reproduce each paragraph of all previous pleadings, including the Statement of Claim and Defence, put the paragraph number in **bold** font and enclose each paragraph within a box as follows. The Claimant may choose to group paragraphs in the Counterclaim together to respond to as a group:

CC (1): [Reproduce paragraph 1 of the counterclaim.]

Respond to each paragraph of the counterclaim and designate each paragraph number as “DTCC (insert paragraph number)” in **bold** font as follows:

DTCC (1): [Set out defence to counterclaim.]

CC (2): [Reproduce paragraph 2 of the counterclaim.]

DTCC (2): [Set out defence to counterclaim.]

Note: Every pleading must incorporate all previous pleadings.]

2. [State whether it is contended that the Court has no jurisdiction over the counterclaim.]
3. [State whether it is contended that the Court should not exercise jurisdiction over the counterclaim.]
4. [State whether the proceedings should be stayed or struck out or that the Court should grant some other relief.]

5. [State whether the counterclaim is admitted and whether the amount of the counterclaim will be paid and/or the non-monetary remedies sought in the counterclaim will be complied with.]
6. [State whether the counterclaim is admitted but an alternative remedy to that requested in the counterclaim is being offered.]
7. [Any denial(s) and/or non-admission(s) as well as the essential facts relied upon must be succinctly and precisely explained.]
8. [Comply with the General Points.]

(c) Reply to Defence to Counterclaim*

Reply to Defence to Counterclaim^

1. In accordance with Order 6 rule 10 of the Rules of Court 2021, this Reply to Defence to Counterclaim is filed pursuant to permission granted by the Court on [date].
2. [The Additional Points to note when drafting the Reply apply similarly here.]
3. [Reproduce each paragraph of all previous pleadings, including the Statement of Claim and Defence, put the paragraph number in **bold** font and enclose the paragraphs within a box as follows:

CC (1): [Reproduce paragraph 1 of the counterclaim.]

DTCC (1): [Reproduce paragraph 1 of the defence to counterclaim.]

Respond to only the specific paragraph(s) of the defence to counterclaim for which approval has been given and designate each paragraph number as “RDTCC (insert paragraph number)” in **bold** font as follows. The Counterclaimant may choose to group paragraphs in the Defence to Counterclaim together to respond to as a group:

RDTCC (1): [Set out reply to defence to counterclaim.]

CC (2): [Reproduce paragraph 2 of the counterclaim.]

DTCC (2): [Reproduce paragraph 2 of the defence to counterclaim.]

RDTCC (2): [Set out reply to defence to counterclaim.]

Note: Every pleading must incorporate all previous pleadings.]

4. [Any denial(s) and/or non-admission(s) as well as the essential facts relied upon must be succinctly and precisely explained.]
5. [Comply with the General Points.]

Certification by [claimant/defendant] and solicitor*

I, [name of claimant/defendant]*, certify that all the statements made above are true to the best of my knowledge and belief.

I, [name of solicitor] certify that I have informed the [claimant/defendant]* of his or her obligation above.

*Signature of [claimant/defendant]**

Signature of solicitor

[Claimant/Defendant]*

Solicitor for the
[claimant/defendant]*

[Name]

[Name of solicitor]

*(*Modify/Delete as appropriate)*

*(**Use if appropriate)*

(^Before filing any pleadings beyond the Defence or Defence to Counterclaim, approval of the Court must be sought and obtained pursuant to Order 6 rule 10 of the Rules of Court 2021. To modify as appropriate for any pleadings beyond the Reply/Reply to Defence to Counterclaim)
